

satisfy itself that the price of the selected offer is reasonable and consistent with the quality required.

- (viii) a complete schedule of procurement cycle from date of issuing the tender to date of issuing the contract should be published when the tender is issued.
- (ix) All Ministries/Departments shall prepare Annual Procurement Plan before the commencement of the year and the same should also be placed on their website.
- (x) [Notwithstanding anything contained in these Rules, Department of Expenditure may, by order in writing, impose restrictions, including prior registration and/ or screening, on procurement from bidders from, or bidders having commercial arrangements with an entity from, a country or countries, or a class of countries, on grounds of defence of India, or matters directly or indirectly related thereto including national security; no procurement shall be made in violation of such restrictions.]⁹

Rule 145 Authorities competent to purchase goods. An authority which is competent to incur expenditure may sanction the purchase of goods required for use in public service in accordance with provisions in the Delegation of Financial Powers Rules, following the general procedure contained in the following rules.

Rule 146 Procurement of goods required on mobilisation Procurement of goods required on mobilisation and/ or during the continuance of Military operations shall be regulated by special rules and orders issued by the Government on this behalf from time to time.

Rule 147 Powers for procurement of

goods. [The Ministries or Departments have been delegated full powers to make their own arrangements for procurement of goods and services, that are not available on GeM. Common use Goods and Services available on GeM are required to be procured mandatorily through GeM as per Rule 149.]¹⁰

Rule 148 Deleted¹¹

Rule 149. Government e-Market place (GeM). Government of India has established the Government e-Marketplace (GeM) for common use Goods and Services. GeM SPV will ensure adequate publicity including periodic advertisement of the items to be procured through GeM for the prospective suppliers. The Procurement of Goods and Services by Ministries or Departments will be mandatory for Goods or Services available on GeM. *The credentials of suppliers on GeM shall be certified by GeM SPV. The procuring authorities will certify the reasonability of rates.* The GeM portal shall be utilized by the Government buyers for direct on-line purchases as under:

- (i) Up to [Rs.50,000/-]¹² through any of the available suppliers on the GeM, meeting the requisite quality, specification and delivery period.
Note: In case of automobiles, procurement under this sub-rule is permitted without any ceiling limit.
- (ii) Above [Rs.50,000/- and up to Rs.10,00,000/-]¹³ through the GeM Seller having lowest price amongst the available sellers of at least three different manufacturers, on GeM, meeting the requisite quality, specification and delivery period. The tools for online bidding and online reverse auction available on GeM can be used by the Buyer even for procurements less than [Rs 10,00,000]¹⁴.
- (iii) Above [Rs.10,00,000/-]¹⁵ through the supplier having lowest price meeting the requisite quality, specification and delivery period after mandatorily obtaining bids, using online bidding or reverse auction tool provided on GeM.
- (iv) The invitation for the online e-

⁹ Amended vide Department of Expenditure (DoE), Ministry of Finance (MoF) OM No. F.7/10/2021-PPD dated 23.02.2023.

¹⁰ Amended vide DoE OM No. F.1/26/2018-PPD dated 02.04.2019.

¹¹ Deleted vide DoE OM No. F.1/26/2018-PPD dated 02.04.2019.

¹² Amended vide Department of Expenditure (DoE), Ministry

of Finance (MoF) OM No. F.1/3/2024-PPD dated 10.07.2024.

¹³ Amended vide Department of Expenditure (DoE), Ministry of Finance (MoF) OM No. F.1/3/2024-PPD dated 10.07.2024.

¹⁴ Amended vide Department of Expenditure (DoE), Ministry of Finance (MoF) OM No. F.1/3/2024-PPD dated 10.07.2024.

¹⁵ Amended vide Department of Expenditure (DoE), Ministry of Finance (MoF) OM No. F.1/3/2024-PPD dated 10.07.2024.

bidding/reverse auction will be available to all the existing Sellers or other Sellers registered on the portal and who have offered their goods/services under the particular product/service category, as per terms and conditions of GeM.

- (v) The above mentioned monetary ceiling is applicable only for purchases made through GeM. For purchases, if any, outside GeM, relevant GFR Rules shall apply.
- (vi) The Ministries/Departments shall work out their procurement requirements of Goods and Services on either "**OPEX**" model or "**CAPEX**" model as per their requirement/ suitability at the time of preparation of Budget Estimates (BE) and shall project their Annual Procurement Plan of goods and services on GeM portal within 30 days of Budget approval.
- (vii) The Government Buyers may ascertain the reasonableness of prices before placement of order using the Business Analytics (BA) tools available on GeM including the Last Purchase Price on GeM, Department's own Last Purchase Price etc.
- (viii) A demand for goods shall not be divided into small quantities to make piecemeal purchases to avoid procurement through L-1 Buying / bidding / reverse auction on GeM or the necessity of obtaining the sanction of higher authorities required with reference to the estimated value of the total demand.

Rule 150 Registration of Suppliers

- (i) *[For goods and services not available on GeM, Head of Ministry/ Department may also register suppliers of goods and services which are specifically required by that Department or Office, periodically. Registration of the supplier should be done following a fair, transparent and reasonable procedure and after giving due publicity. Such registered suppliers should be boarded on GeM as and when the item or service gets listed on GeM.]*¹⁶
- (ii) Credentials, manufacturing capability, quality control systems, past performance, after-sales service, financial background etc. of the supplier(s) should be carefully verified

before registration.

- (iii) The supplier(s) will be registered for a fixed period (between 1 to 3 years) depending on the nature of the goods. At the end of this period, the registered supplier(s) willing to continue with registration are to apply afresh for renewal of registration. New supplier(s) may also be considered for registration at anytime, provided they fulfill all the required conditions.
- (iv) Performance and conduct of every registered supplier is to be watched by the concerned Ministry or Department. The registered supplier(s) are liable to be removed from the list of approved suppliers if they fail to abide by the terms and conditions of the registration or fail to supply the goods on time or supply substandard goods or make any false declaration to any Government agency or for any ground which, in the opinion of the Government, is not in public interest.
- (v) [The list of registered suppliers for the subject matter of procurement be exhibited on websites of the Procuring Entity/ their e-Procurement portals.]¹⁷

Rule 151 Debarment from bidding.

- (i) A bidder shall be debarred if he has been convicted of an offence—
 - (a) under the Prevention of Corruption Act, 1988; or
 - (b) the Indian Penal Code or any other law for the time being in force, for causing any loss of life or property or causing a threat to public health as part of execution of a public procurement contract.
- (ii) A bidder debarred under sub-section (i) or any successor of the bidder shall not be eligible to participate in a procurement process of any procuring entity for a period not exceeding three years commencing from the date of debarment. Department of Expenditure (DoE) will maintain such list which will also be displayed on the Central Public Procurement Portal.¹⁸
- (iii) A procuring entity may debar a bidder or any of its successors, from participating in any procurement process undertaken by it, for a period not exceeding two years, if it

¹⁶ Amended vide DoE OM No. F.1/26/2018-PPD dated 02.04.2019.

¹⁷ Amended vide DoE OM No. F.1/26/2018-PPD dated 02.04.2019.

¹⁸ Amended vide DoE OM No. F.1/20/2018-PPD dated 02.11.2021.

determines that the bidder has breached the code of integrity. The Ministry/Department will maintain such list which will also be displayed on their website.

- (iv) The bidder shall not be debarred unless such bidder has been given a reasonable opportunity to represent against such debarment

Rule 152 Enlistment of Indian Agents:

[Ministries / Departments if they so require, may enlist Indian agents, who desire to quote directly on behalf of their foreign principals.]¹⁹

Rule 153 Reserved Items and other Purchase/ Price Preference Policy.

- (i) [The Central Government, through administrative instructions, has reserved all items of hand spun and hand-woven textiles (khadi goods) for exclusive purchase from Khadi Village Industries commission (KVIC). Of all items of textiles required by Central Government departments, it shall be mandatory to make procurement of at least 20% from amongst items of handloom origin, for exclusive purchase from KVIC and/ or Handloom Clusters such as Co-Operative Societies, Self Help Group (SHG) Federations, Joint Liability Group (JLG), Producer Companies (PC), Corporations etc. including Weavers having Pehchan Cards.]²⁰
- (ii) Ministry of Micro, Small and

Medium Enterprises (MSME) have notified procurement policy under section 11 of the Micro, Small and Medium Enterprises Development Ad, 2006.

- (iii) The Central Government may, by notification, provide for mandatory procurement of any goods or services from any category of bidders, or provide for preference to bidders on the grounds of promotion of locally manufactured goods or locally provided services.

Rule 154 Purchase of goods without quotation

Purchase of goods upto the value of [Rs. 50,000 (Rupees fifty thousand) only]²¹ on each occasion may be made without inviting quotations or bids on the basis of a certificate to be recorded by the competent authority in the following format.

"I, am personally satisfied that these goods purchased are of the requisite quality and specification and have been purchased from a reliable supplier at a reasonable price."

Rule 155 Purchase of goods by Purchase Committee. [In case a certain item is not available on the GeM portal,]²² Purchase of goods costing above [Rs.50,000 (Rupees Fifty thousand only) and upto Rs.5,00,000/- (Rupees Five lakh only)]²³ on each occasion may be made on the recommendations of a duly constituted Local Purchase Committee consisting of three

¹⁹ Amended vide DoE OM No. F.26/2/2016-PPD dated 25.07.2017.

²⁰ Amended vide DoE OM No. F.10/2/2019-PPD(Pt.) dated 17.02.2020.

²¹ Replace with purchase of goods upto the value of Rs. 1,00,000/- (Rupees one lakh) only on each occasion in case of Scientific Ministries/ Departments/ Organization of Government of India which are Department of Science and Technology, Department of Bio-technology, Department of Scientific & Industrial Research, Department of Atomic Energy, Department of Space, Ministry of Earth Sciences, Defence Research and Development Organisation, Indian Council of Agricultural Research (ICAR), including its affiliated institutions and Universities, Department of Health Research (DHR), including Indian Council of Medical Research, Educational and Research Institutes conducting post-graduate/ doctoral level courses or research, under any Ministry/ Department, notified vide Department of Expenditure OM No. F.20/42/2021-PPD dated 20.05.2024. Note: These powers can be used for procurement of any item. Further, these powers are to be used only when the required goods are not available on Government e-Marketplace (GeM) as stipulated in this Department OM No.

6/1/2018-PPD dated 19.01.2018.

²² Inserted vide DoE OM No. F.1.26/2018-PPD dated 02.04.2019.

²³ Replace with purchase of goods costing above Rs. 1,00,000/- (Rupees one lakh) and upto Rs. 10,00,000/- (Rupees ten lakh) in case of Scientific Ministries/ Departments/ Organization of Government of India which are Department of Science and Technology, Department of Bio-technology, Department of Scientific & Industrial Research, Department of Atomic Energy, Department of Space, Ministry of Earth Sciences, Defence Research and Development Organisation, Indian Council of Agricultural Research (ICAR), including its affiliated institutions and Universities, Department of Health Research (DHR), including Indian Council of Medical Research, Educational and Research Institutes conducting post-graduate/ doctoral level courses or research, under any Ministry/ Department, notified vide Department of Expenditure OM No. F.20/42/2021-PPD dated 20.05.2024. Note: These powers are to be used only when the required goods are not available on Government e-Marketplace (GeM) as stipulated in this Department OM No. 6/1/2018-PPD dated 19.01.2018.

members of an appropriate level as decided by the Head of the Department. The committee will survey the market to ascertain the reasonableness of rate, quality and specifications and identify the appropriate supplier. Before recommending placement of the purchase order, the members of the committee will jointly record a certificate as under:

"Certified that we, members of the purchase committee are jointly and individually satisfied that the goods recommended for purchase are of the requisite specification and quality, priced at the prevailing market rate and the supplier recommended is reliable and competent to supply the goods in question, and it is not debarred by Department of Expenditure²⁴ or Ministry/ Department concerned."

Rule 156 Deleted.²⁵

Rule 157A demand for goods should not be divided into small quantities to make piecemeal purchases to avoid the necessity of obtaining the sanction of higher authority required with reference to the estimated value of the total demand

Rule 158 Purchase of goods by obtaining bids. Except in cases covered under Rule 154 and 155, Ministries or Departments shall procure goods under the powers referred to in Rule 140 above by following the standard method of obtaining bids in:

- (i) Advertised Tender Enquiry
- (ii) Limited Tender Enquiry
- (iii) Two-Stage Bidding
- (iv) Single Tender Enquiry
- (v) Electronic Reverse Auctions

Rule 159 E-Publishing

- (i) It is mandatory for all Ministries/ Departments of the Central Government, their attached and Subordinate Offices and Autonomous /Statutory Bodies to publish their tender enquiries, corrigenda thereon and details of bid awards on the Central Public Procurement Portal (CPPP).
- (ii) Individual cases where

confidentiality is required, for reasons of national security, would be exempted from the mandatory e-publishing requirement. The decision to exempt any case on the said grounds should be approved by the Secretary of the Ministry/ Department with the concurrence of the concerned Financial Advisor. In the case of Autonomous Bodies and Statutory Bodies' approval of the Head of the Body with the concurrence of the Head of the Finance should be obtained in each such case. Statistical information on the number of cases in which exemption was granted and the value of the concerned contract should be intimated on a Quarterly basis to the Ministry of Finance, Department of Expenditure.

- (iii) The above instructions apply to all Tender Enquiries, Requests for Proposals, Requests for Expressions of Interest, Notice for pre-Qualification/ Registration or any other notice inviting bids or proposals in any form whether they are advertised, issued to limited number of parties or to a single party.

(iv) Deleted.²⁶

- (v) These instructions would not apply to procurements made in terms of provisions of Rules 154 (Purchase of goods without quotations) or 155 (Purchase of goods by purchase committee) of General Financial Rules.

Rule 160 E -Procurement

- (i) It is mandatory for Ministries/ Departments to receive all bids through e-procurement portals in respect of all procurements.
- (ii) Ministries/ Departments which do not have a large volume of procurement or carry out procurements required only for day-to-day running of offices and also have not initiated e-procurement through any other

²⁴ Amended vide DoE OM No. F.1/20/2018-PPD dated 02.11.2021.

²⁵ Deleted vide DoE OM No. F.1/26/2018-PPD dated 02.04.2019.

²⁶ Deleted vide DoE OM No. F.1/26/2018-PPD dated 02.04.2019.

solution provided so far, may use e-procurement solution developed by NIC. Other Ministries/ Departments may either use e-procurement solution developed by NIC or engage any other service provider following due process.

(iii) Deleted.²⁷

(iv) In individual case where national security and strategic considerations demands confidentiality, Ministries/ Departments may exempt such cases from e-procurement after seeking approval of concerned Secretary and with concurrence of Financial Advisers.

(v) In case of tenders floated by Indian Missions Abroad, Competent Authority to decide the tender, may exempt such case from e-procurement.

Rule 161 Advertised Tender Enquiry

(i) Subject to exceptions incorporated under Rule 154, 155, 162 and 166, invitation to tenders by advertisement should be used for procurement of goods of estimated value of [Rs. 50 lakhs (Rupees Fifty Lakh)²⁸ and above. Advertisement in such cases should be given on GeM as well as on GeM- Central Public Procurement Portal (CPPP). An organisation having its own website should also publish all its advertised tender enquiries on the website.

(ii) The organisation should also post the complete bidding document in its website and on CPPP to enable prospective bidders to make use of the document by downloading from the web site.

(iii) The advertisements for invitation of tenders should give the complete web address from where the bidding documents can be downloaded.

(iv) [Global Tender Enquiry (GTE):
(a) Where the Ministry or Department feels that the

goods of the required quality, specifications etc., may not be available in the country and it is necessary to also look for suitable competitive offers from abroad, the Ministry or Department may send copies of the tender notice to the Indian Embassies abroad as well as to the Foreign Embassies in India. The selection of embassies will depend on the possibility of availability of the required goods in such countries. In such cases e-procurement as per Rule 160 may not be insisted.

(b) No Global Tender Enquiry (GTE), however shall be invited for tenders up to Rs 200 crore or such limit as may be prescribed by the Department of Expenditure from time to time. Provided that for tenders below such limit, in exceptional cases, where the Ministry or Department feels that there are special reasons for GTE, it may record its detailed justification and seek prior approval for relaxation to the above rule from the Competent Authority specified by the Department of Expenditure.]²⁹

(v) In order to promote wider participation and ease of bidding, no cost of tender document may be charged for the tender documents downloaded by the bidders.

(vi) Ordinarily, the minimum time to be allowed for submission of bids should be three weeks from the date of publication of the tender notice or availability of the bidding document for sale, whichever is later. Where the Department also contemplates obtaining bids from abroad, the minimum period should be kept

²⁷ Deleted vide DoE OM No. F.1/26/2018-PPD dated 02.04.2019.

²⁸ Amended vide Department of Expenditure (DoE), Ministry of Finance (MoF) OM No. F.1/3/2024-PPD dated 10.07.2024

²⁹ Amended vide DoE OM No. F.12/17/2019-PPD dated 15.05.2020.